

IN THE HOUSE OF REPRESENTATIVES

HOUSE JOINT MEMORIAL NO. 11

BY EDUCATION COMMITTEE

A JOINT MEMORIAL

TO THE SENATE AND THE HOUSE OF REPRESENTATIVES OF THE UNITED STATES IN CONGRESS ASSEMBLED, TO THE CONGRESSIONAL DELEGATION REPRESENTING THE STATE OF IDAHO IN THE CONGRESS OF THE UNITED STATES, TO THE PRESIDENT OF THE UNITED STATES, TO THE IDAHO SUPERINTENDENT OF PUBLIC INSTRUCTION, AND TO THE UNITED STATES SECRETARY OF EDUCATION.

We, your Memorialists, the House of Representatives and the Senate of the State of Idaho assembled in the Second Regular Session of the Sixty-eighth Idaho Legislature, do hereby respectfully represent that:

WHEREAS, in 1975, Congress enacted the Education for All Handicapped Children Act, now known as the Individuals with Disabilities Education Act (IDEA), guaranteeing that children with disabilities receive a free, appropriate public education in the least restrictive environment; and

WHEREAS, before the enactment of IDEA, many children with disabilities were placed in restrictive settings and provided only minimal food, clothing, and shelter. The children's families were not afforded the opportunity to take part in planning or placement decisions for their child; and

WHEREAS, with IDEA's passage, Congress committed to provide up to 40% of the national average per-pupil expenditure in federal funding toward the "excess cost" of educating children with disabilities. This formula has remained a central feature of IDEA funding; and

WHEREAS, in the nearly 50 years since IDEA's passage, the federal government has never met this 40% funding commitment; and

WHEREAS, according to the Congressional Research Service and other analyses, current federal IDEA funding covers only a fraction of the 40% originally committed in the law. Federal IDEA funding in Idaho is approximately 12%; and

WHEREAS, the continual shortfall in federal IDEA funding has placed a growing financial burden on taxpayers, school districts, families, and state legislatures, undermining the law's promise and limiting resources available for students with disabilities; and

WHEREAS, parents, advocates, and legislators have repeatedly advocated for legislation requiring Congress to meet its long-standing commitment through mandatory, regular increases in IDEA funding; and

WHEREAS, students with disabilities become adults within communities, and improved outcomes for students with disabilities strengthen the community by preparing them to contribute as members of the future workforce, engaged citizens, and parents of future generations; and

WHEREAS, in recent reintroductions, the IDEA Full Funding Act has garnered bipartisan support and broad backing from national organizations, reinforcing the urgency of fulfilling the original federal commitment; and

WHEREAS, fully funding IDEA is not only a moral and legal obligation but also a wise financial investment because stable and adequate federal support

1 helps ensure high-quality special education services, improves outcomes for  
2 students with disabilities, and relieves pressure on taxpayers and state and  
3 local education budgets.

4 NOW, THEREFORE, BE IT RESOLVED by the members of the Second Regular Ses-  
5 sion of the Sixty-eighth Idaho Legislature, the House of Representatives and  
6 the Senate concurring therein, that the Idaho Legislature strongly urges the  
7 United States Congress to pass and fully fund legislation that fulfills the  
8 federal commitment to provide up to 40% of the national average per-pupil ex-  
9 penditure for the excess cost of educating children with disabilities under  
10 IDEA. The Legislature encourages Idaho's congressional delegation to sup-  
11 port increasing mandatory, sustained federal IDEA funding so that the 40%  
12 target is reached within a reasonable, defined timeline. The Legislature  
13 calls on the President of the United States to endorse fully funding IDEA and  
14 to propose in the President's annual budget the mandatory increases neces-  
15 sary to meet the 40% commitment.

16 BE IT FURTHER RESOLVED that the Legislature directs the Idaho Superin-  
17 tendent of Public Instruction to provide an annual overview of how federal  
18 IDEA funding supports Idaho's commitment to high-quality, inclusive special  
19 education services, including examples of effective practices, innovative  
20 supports, and areas where increased federal investment would enhance sus-  
21 tainability and long-term program strength.

22 BE IT FURTHER RESOLVED that the Legislature encourages the United  
23 States Department of Education to provide clear, accessible information  
24 about nationwide and statewide IDEA funding levels that will help Idaho con-  
25 tinue to plan proactively, celebrate progress, and advocate for Congress to  
26 fulfill the long-standing federal funding commitment.

27 BE IT FURTHER RESOLVED that the Chief Clerk of the House of Representa-  
28 tives be, and she is hereby authorized and directed to forward a copy of this  
29 Memorial to the President of the Senate and the Speaker of the House of Rep-  
30 resentatives of Congress, to the congressional delegation representing the  
31 State of Idaho in the Congress of the United States, to the President of the  
32 United States, to the Idaho Superintendent of Public Instruction, and to the  
33 United States Secretary of Education.